IN THE NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH

Date: 10.08.2022

Clarification Order

CP(CAA) 11 of 2020 in CA(CAA) 93 of 2019

In the matter of:

Manak Utensils Pvt. Ltd.
P.J. Beverage Pvt. Ltd.
Babson Alloys Pvt. Ltd.
Amrit Dall Mill Pvt. Ltd.
Flame Real Estate Pvt. Ltd.
Antardhara Estate and Finvest Pvt. Ltd.
Nirmulya Estate and Finvest Pvt. Ltd.
Stud Estate and Finvest Pvt. Ltd.
Manavhit Finvest and Builders Pvt. Ltd.
Pushpraj Estate and Finvest Pvt. Ltd.
Manoneet Estate and Construction Pvt. Ltd.
Mangalmaya Estate and Finvest Pvt. Ltd.
Ekroopta Estate and Finvest Pvt. Ltd.
Jyotipriya Plantation and Orchads Pvt. Ltd.
AM Buildcon Pvt. Ltd.
Kamali Finstock Ltd.
MA-Anandia Leasing and Finance Ltd.
Surendra Petrochem Pvt. Ltd.
Ankit Steels Pvt. Ltd.

This matter was heard and reserved for order on 28.07.2022. However, on perusal of records, it is found that by order dated 23.01.2020 it was directed by this Tribunal to Applicant Transferor Company No. 16 (Kamali Finstock Ltd.) to convene separate meetings of the Shareholders and Unsecured Creditors. However, the chairman report filed by the chairman for the abovementioned meeting does not have any information regarding the meeting of Unsecured Creditors and whether a resolution was passed or not therein. Further, it was also found that no schedule of properties is filed by the petitioner companies showing the list of assets and liabilities to be transferred to the transferee company from the demerged/transferor companies.

Accordingly, this matter is released for further clarification on 12.08.2022

-Sd-

(KAUSHALENDRA KUMAR SINGH)
MEMBER (TECHNICAL)

-Sd-

(MADAN B. GOSAVI)
MEMBER (JUDICIAL)

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